

Senate File 442

S-3079

1 Amend Senate File 442 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 TEACHER SALARY SUPPLEMENT DISTRICT COST PER PUPIL

6 Section 1. Section 257.10, subsection 9, paragraph a,
7 subparagraph (3), subparagraph divisions (b) and (c), Code
8 2025, are amended to read as follows:

9 ~~{b} The department of management shall categorize all~~
10 ~~school districts into not more than ten tiers according to each~~
11 ~~school district's actual enrollment. Each tier established~~
12 ~~by the department of management containing a school district~~
13 ~~with an actual enrollment above three thousand five hundred~~
14 ~~pupils shall contain, to the extent feasible, the same number~~
15 ~~of school districts as other tiers containing school districts~~
16 ~~with an actual enrollment of more than three thousand five~~
17 ~~hundred pupils. Each tier established by the department~~
18 ~~of management containing a school district with an actual~~
19 ~~enrollment equal to or less than three thousand five hundred~~
20 ~~pupils shall contain, to the extent feasible, the same number~~
21 ~~of school districts as other tiers containing school districts~~
22 ~~with an actual enrollment equal to or less than three thousand~~
23 ~~five hundred pupils.~~

24 ~~{c}~~ {b} (i) To support school districts with meeting
25 the minimum teacher salary requirements under chapter 284,
26 including the minimum teacher starting salary requirement
27 of fifty thousand dollars; and the minimum teacher salary
28 requirement for full-time teachers with, as of July 1, 2025, at
29 least twelve years of experience of sixty-two thousand dollars
30 under chapter 284; and the minimum teacher salary requirement
31 for teachers with at least twelve years of experience, who
32 have had a bona fide retirement from employment with a covered
33 employer as provided in section 97B.52A, and who have returned
34 to covered employment with a covered employer pursuant to
35 chapter 97B as a teacher licensed under chapter 256, of

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1 fifty thousand dollars, and other costs associated with such
2 salary requirements, as identified in subparagraph subdivision
3 (ii) including costs associated with the employer's share of
4 contributions to the Iowa public employees' retirement system
5 and the employer's share of the tax imposed by the federal
6 Insurance Contributions Act, the department of management
7 shall calculate and assign to all school districts in a tier
8 established under subparagraph division (b), a teacher salary
9 supplement district cost per pupil in an amount based in part
10 on the average cost to school districts within the tier to meet
11 the requirements, plus an amount equal to the teacher salary
12 supplement supplemental state aid amount for the budget year.

13 (ii) ~~If, however, a school district's total teacher~~
14 ~~salary supplement district cost under paragraph "c", as~~
15 ~~calculated using the teacher salary supplement district cost~~
16 ~~per pupil assigned to the school district's applicable tier,~~
17 ~~is insufficient to comply with the applicable minimum teacher~~
18 ~~salary requirements of the school district, including costs~~
19 ~~associated with the employer's share of contributions to the~~
20 ~~Iowa public employees' retirement system and the employer's~~
21 ~~share of the tax imposed by the federal Insurance Contributions~~
22 ~~Act, the department of management shall set the school~~
23 ~~district's teacher salary supplement district cost per pupil~~
24 ~~at an amount necessary to meet the district's minimum salary~~
25 ~~requirements and associated costs. If, however, a school~~
26 ~~district reported a teacher's years of experience incorrectly~~
27 ~~on the fall 2023 basic educational data survey compared to the~~
28 ~~fall 2024 basic educational data survey, and the difference~~
29 ~~would have resulted in an additional per pupil amount for~~
30 ~~the budget year beginning July 1, 2024, the department of~~
31 ~~management shall increase the teacher salary supplement~~
32 ~~district cost per pupil for the budget year beginning July 1,~~
33 ~~2025, by the difference between the teacher salary supplement~~
34 ~~district cost per pupil that would have been calculated if not~~
35 ~~for the incorrect reporting and the teacher salary supplement~~

1 district cost per pupil actually calculated.

2 Sec. 2. EFFECTIVE DATE. This division of this Act, being
3 deemed of immediate importance, takes effect upon enactment.

4 DIVISION II

5 TEACHER PREPARATION

6 Sec. 3. Section 256.16, subsection 1, paragraph c,
7 subparagraph (1), Code 2025, is amended to read as follows:

8 (1) (a) Require Except as described in subparagraph
9 division (b), require that each student admitted to an approved
10 practitioner preparation program participate in pre-student
11 teaching field experiences that include both observation and
12 participation in teaching activities in a variety of school
13 settings.

14 {a} Pre-student teaching field experiences for students
15 participating in an initial teacher preparation program shall
16 comprise a total of at least eighty hours in duration, at least
17 ten hours of which shall occur prior to a student's acceptance
18 in an approved practitioner preparation program.

19 (b) Pre-student teaching field experiences for students
20 participating in a teacher intern preparation program ~~shall~~ may
21 comprise a total of at least fifty hours in duration.

22 Sec. 4. Section 256.16, subsection 1, paragraph c,
23 subparagraph (2), subparagraph division (a), subparagraph
24 subdivision (i), Code 2025, is amended to read as follows:

25 (i) The If the student has prior work experience as a
26 substitute teacher, the board of educational examiners has
27 issued a substitute license, or substitute authorization, ~~or a~~
28 ~~para-educator certificate~~ to the student.

29 Sec. 5. Section 256.16, subsection 1, paragraph c,
30 subparagraph (2), subparagraph division (b), subparagraph
31 subdivision (i), Code 2025, is amended by striking the
32 subparagraph subdivision.

33 Sec. 6. Section 256.16, subsection 1, paragraph m,
34 subparagraph (2), Code 2025, is amended by striking the
35 subparagraph.

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DIVISION III
OUT-OF-STATE PLACEMENT

Sec. 7. NEW SECTION. 282.35 Children requiring special
education — out-of-state placement.

1. For purposes of this section:

a. "Child" means an individual who is under the age of
eighteen years, or an individual who is under the age of
twenty-one and is a full-time student, to whom all of the
following criteria apply:

(1) The individual is eligible for health care benefits
under chapter 249A.

(2) The individual's health care coordination and
intervention team determines, pursuant to section 249A.4A,
subsection 3, paragraph "c", subparagraph (1), that the
placement of the individual in an out-of-state facility, or
placement of the individual with an out-of-state provider, is
necessary for the individual to realize the full benefits of
chapter 249A.

(3) The director of the department of health and human
services certifies that the placement of the individual in an
out-of-state facility, or placement of the individual with an
out-of-state provider, is necessary to prevent the filing of a
petition under chapter 232 related to the individual.

(4) The director of the department of education determines
that the placement of the individual in an out-of-state
facility, or placement of the individual with an out-of-state
provider, would provide to the individual the education
required under chapter 256B and the rules adopted pursuant to
chapter 256B.

(5) The individual is and remains a resident of this state.

b. "District of residence" means the school district in
which the parent or legal guardian of the child resides or the
district in which the district court is located if the district
court is the guardian of the child.

c. "Resident" means the same as defined in section 282.1,

1 subsection 2.

2 2. A child's district of residence may place the child in
3 an out-of-state facility or with an out-of-state provider for
4 purposes of providing the child with the education required
5 under chapter 256B, subject to the terms of an agreement
6 between the child's district of residence and the facility or
7 provider. The agreement shall satisfy all of the following
8 requirements:

9 a. The agreement must require the facility or provider to
10 provide periodic invoices to the child's district of residence
11 that describes the services provided to the child and the cost
12 associated with such services.

13 b. The agreement must condition the child's district of
14 residence's payment of the invoice described in paragraph
15 "a" upon the facility or provider providing to the child the
16 education required under chapter 256B and the rules adopted
17 pursuant to chapter 256B.

18 3. a. A child's district of residence is not financially
19 responsible for the services provided by an out-of-state
20 facility or an out-of-state provider to a child unless the
21 out-of-state facility or out-of-state provider provides notice
22 to the child's district of residence that the child may be
23 subject to this section and the child's district of residence
24 enters into an agreement with the out-of-state facility
25 or out-of-state provider that satisfies the requirements
26 established in subsection 2.

27 b. By August 1 following the school year in which the
28 out-of-state facility or out-of-state provider provided
29 services to a child pursuant to an agreement entered into under
30 subsection 2, the child's district of residence may submit
31 an accounting to the department of education that describes
32 the cost of the services provided by the facility or provider
33 during such school year.

34 c. By August 15 following the school year in which the
35 out-of-state facility or out-of-state provider provided

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1 services to a child pursuant to an agreement entered into
2 under subsection 2, the department of education shall review
3 and either approve or modify the accounting submitted pursuant
4 to paragraph "b" and make payment to the child's district of
5 residence toward the school year in which the cost of the
6 services was incurred. The payment amount is the difference
7 between the amount of the actual costs as reflected in the
8 district of residence's accounting less the amount generated by
9 the weighting for the provision of services.

10 d. Any amounts paid by the department of education to school
11 districts in this state pursuant to paragraph "c" shall be
12 deducted on a monthly basis from the state foundation aid paid
13 under section 257.16 to all school districts in the state in
14 the school year following the school year in which the services
15 were provided. The portion of the total amount paid by the
16 department of education to a district that shall be deducted
17 from the state foundation aid paid to the district shall be the
18 same as the ratio that the budget enrollment for the budget
19 year of the district bears to the total budget enrollment in
20 the state for that budget year.

21 4. The department of education shall promptly and summarily
22 resolve any disputes between school districts related to the
23 financial responsibility of such school districts under this
24 section.

25 DIVISION IV

26 ONLINE STATE JOB POSTING SYSTEM

27 Sec. 8. Section 84A.6, subsection 4, Code 2025, is amended
28 by striking the subsection.

29 Sec. 9. NEW SECTION. 256.27 Online state job posting
30 system.

31 1. The department shall provide for the operation of an
32 online state job posting system. The system shall be designed
33 and implemented for the online posting of job openings offered
34 by school districts, charter schools, area education agencies,
35 the department, and accredited nonpublic schools. The system

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1 shall be accessible via the department's internet site. The
2 system shall include a mechanism for the electronic submission
3 of job openings for posting on the system as provided in
4 subsection 2. The system and each job posting on the system
5 shall include a statement that an employer submitting a job
6 opening for posting on the system will not discriminate in
7 hiring on the basis of race, ethnicity, national origin,
8 gender, age, physical disability, sexual orientation, gender
9 identity, religion, marital status, or status as a veteran.
10 The department may contract for, or partner with another entity
11 for, the use of an existing internet site to operate the online
12 state job posting system if the existing internet site is more
13 effective and economical than the department's internet site.

14 2. A school district, charter school, or area education
15 agency shall submit all of its job openings to the department
16 for posting on the system and shall keep and maintain all
17 unfilled job openings on the system. The department shall post
18 all of its job openings on the system. An accredited nonpublic
19 school may submit job openings to the department for posting
20 on the system.

21 3. This section shall not be construed to do any of the
22 following:

23 a. Prohibit any employer from advertising job openings and
24 recruiting employees independently of the system.

25 b. Prohibit any employer from using another method of
26 advertising job openings or another applicant tracking system
27 in addition to the system.

28 c. Provide the department with any regulatory authority in
29 the hiring process or hiring decisions of any employer other
30 than the department.

31 DIVISION V

32 TEACHER COMPENSATION

33 Sec. 10. Section 284.15, subsection 3, paragraph b, Code
34 2025, is amended to read as follows:

35 b. (1) For the fiscal year beginning July 1, 2025, and each

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1 subsequent fiscal year, the salary for a career teacher, model
2 teacher, mentor teacher, or lead teacher, who holds a valid
3 license issued under chapter 256, subchapter VII, part 3, and
4 who has been a teacher for at least twelve years, shall be at
5 least sixty-two thousand dollars.

6 (2) Notwithstanding subparagraph (1), for the fiscal year
7 beginning July 1, 2025, and each subsequent fiscal year, a
8 career teacher, model teacher, mentor teacher, or lead teacher,
9 who holds a valid license issued under chapter 256, subchapter
10 VII, part 3, who has been a teacher for at least twelve years,
11 who has had a bona fide retirement from employment with a
12 covered employer as provided in section 97B.52A, and who has
13 returned to covered employment with a covered employer pursuant
14 to chapter 97B as a teacher licensed under chapter 256, shall
15 be paid not less than fifty thousand dollars.

16 Sec. 11. Section 284.16, subsection 2, paragraph b, Code
17 2025, is amended to read as follows:

18 b. (1) For the fiscal year beginning July 1, 2025, and
19 each subsequent fiscal year, a career teacher, instructional
20 coach, curriculum and professional development leader, or model
21 teacher, who has been a teacher for at least twelve years,
22 shall be paid not less than sixty-two thousand dollars.

23 (2) Notwithstanding subparagraph (1), for the fiscal
24 year beginning July 1, 2025, and each subsequent fiscal
25 year, a career teacher, instructional coach, curriculum and
26 professional development leader, or model teacher, who has been
27 a teacher for at least twelve years, who has had a bona fide
28 retirement from employment with a covered employer as provided
29 in section 97B.52A, and who has returned to covered employment
30 with a covered employer pursuant to chapter 97B as a teacher
31 licensed under chapter 256, shall be paid not less than fifty
32 thousand dollars.

33 Sec. 12. Section 284.17, subsection 1, paragraph b, Code
34 2025, is amended to read as follows:

35 b. (1) For the fiscal year beginning July 1, 2025, and each

1 subsequent fiscal year, the minimum salary of fifty thousand
2 dollars for a full-time teacher who has less than twelve years
3 of teaching experience and a minimum salary of sixty-two
4 thousand dollars for a full-time teacher who has at least
5 twelve years of teaching experience.

6 (2) Notwithstanding subparagraph (1), for the fiscal year
7 beginning July 1, 2025, and each subsequent fiscal year, a
8 minimum salary of fifty thousand dollars for a full-time
9 teacher who has at least twelve years of teaching experience,
10 who has had a bona fide retirement from employment with a
11 covered employer as provided in section 97B.52A, and who has
12 returned to covered employment with a covered employer pursuant
13 to chapter 97B as a teacher licensed under chapter 256.>

LYNN EVANS